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FUTURE THINKING, NOW

GBS PROCESS FLOW

Consumer Protection Act — Organisational Complaint Receiving and NCC Compliance Process Flow

Consumer Protection Act 68 of 2008 ("CPA") · Consumer Protection Act Regulations, 2011 (GN R.293), as amended by the Consumer Protection Act Amendment Regulations, 2026 (GN R.7380, Government Gazette 54521, in force 15 April 2026) · Protection of Personal Information Act 4 of 2013 ("POPIA"), s.69 · As at 19 October 2026

PREPARED FOR
[Client / Team]

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DOCUMENT STATUS

Working document for legal review — not legal advice.

CPA = binding now; POPIA = separate, cumulative regime; BP = best practice.

01 / CPA COMPLAINT RECEIVING PROCESS

Purpose, status and reading notes

This flow tells a supplier what to do, by when, and who hands off to whom, from the moment a consumer complaint arrives — through any of the channels the CPA allows a consumer to use — until the matter closes and lessons feed back into controls. It runs alongside a second, non-case-triggered obligation that the 2026 Amendment Regulations put beyond doubt: registering as a direct marketer on the National Consumer Commission's ("NCC") opt-out registry, identifying the organisation in every marketing communication, and cleansing the marketing database against the registry every month. The two are related but distinct: a mishandled complaint exposes the organisation to a compliance notice, a Tribunal referral and an administrative fine of up to R1 million or 10% of annual turnover; unregistered or uncleansed direct marketing exposes it to the same fine once the NCC's registration deadline (end-December 2026) has passed and full enforcement has begun (15 April 2027), independently of any single complaint.

Legal status. The CPA is the binding law; the Consumer Protection Act Regulations, 2011 fill in prescribed forms, timeframes and procedure, and the 2026 Amendment Regulations are already in force. They were made under s.120(1)(a), read with s.11(6), of the CPA, and s.6 of the schedule states plainly that they "come into effect on publication date of the Notice" — 15 April 2026. The NCC's April 2026 statements pointed to operational registration from July 2026; the registry opened for direct-marketer registration on 15 September 2026. On 7 October 2026 the NCC announced a phased roll-out: direct-marketer registration by end-December 2026; list cleansing December 2026–April 2027; consumer blocks from May 2027; full enforcement from 15 April 2027. Draft Opt-Out Registry Guidelines were published for comment on 2 October 2026 (GG 55465, Notice 7981); the comment period was extended to 6 November 2026. Register now; diarise these dates in steps 0.4 and 0.8 and step 6.6. POPIA applies in parallel to any electronic direct marketing and is enforced separately by the Information Regulator.

Labels used throughout.

- **CPA** = the Consumer Protection Act 68 of 2008, its Regulations and Annexures; binding now.
- **POPIA** = the Protection of Personal Information Act 4 of 2013, s.69 in particular; a separate, cumulative regime enforced by the Information Regulator.
- **BP** = best practice or internal control; not a statutory deadline. Adopt as policy so it becomes binding internally.

Design principle. A consumer can reach the system through several doors: directly to the organisation, to the ombud with jurisdiction over the organisation (the ordinary route where one exists, s.69(b)), to the NCC by lodging the prescribed Annexure E complaint form where no such ombud applies (s.69(c), s.71(1)), or in limited cases directly to the National Consumer Tribunal ("NCT" or "Tribunal", s.69(a)). s.69(d) refers to approaching a court once other national-legislation remedies are exhausted, but the SCA (Motus v Wentzel, 2021) and later High Court authority (Pure Silk Invest v Martin, WCHC 2025) hold that it does not lightly exclude a consumer's right to sue directly. Treat any summons or letter of demand as live from day 0 (step 1.3) and refer it to LA; do not assume a court will decline it. Because the organisation cannot control which door a complaint arrives through, this flow gives every channel the same single intake, so that the file, the evidence and the internal clock are identical whichever door was used.

Eight interpretation points that shape the flow.

- **Counting days.** The CPA is not consistent: some provisions state "business days" expressly (the s.16 cooling-off period: 5 business days to cancel, 15 business days to refund, which does not apply where ECTA s.44 governs an online transaction; the s.101(1) compliance-notice objection window: 15 business days; the 40–80 business day automatic-renewal notice). Others, such as the s.116 three-year time limit, run in ordinary years. Where a provision is silent on the kind of day, the Interpretation Act 33 of 1957 s.4 applies: calendar days, excluding the first and including the last, unless the last day is a Sunday or public holiday. Diarise every deadline by its own stated unit; do not assume business days as a default.
- **The consumer's routes are structured, but every door is logged.** Section 69 sets out the consumer's routes. Where the organisation is subject to an ombud with jurisdiction (e.g. CGSO, MIOSA, the NFO), that ombud is the ordinary route (s.69(b)). The provincial consumer court, ADR and NCC complaint routes under s.69(c) apply where it is not; s.71(1) ties NCC complaints to that route, and the NCC usually refers a matter to ADR or the accredited

ombud unless that has already failed (s.72(1)(b)). A direct Tribunal referral (s.69(a)) applies only where the Act permits it; the court route is dealt with in the design principle above. The organisation must still accept and log a complaint through any door, and may respectfully point the consumer or the NCC to the ombud with jurisdiction.

- **The R2 million threshold.** The CPA protects a juristic person whose asset value or annual turnover, at the time of the transaction, is below the threshold determined by the Minister under s.6 for s.5(2)(b): currently **R2 million** (GN 294, GG 34181, 1 April 2011). It has not been revised since, although s.6 requires review at least every five years; check for a new determination at each annual review (step 6.6). Version 1.0 of this flow wrongly gave the figure as R3 million, citing Government Gazette 33621 (October 2010), which contained only the proposed determination; GBS materials that say R2 million are correct (see section 15, correction 1).
- **"Cleanse AND consent", not "cleanse OR consent".** POPIA s.69 governs whether the organisation may send an electronic direct-marketing communication at all (consent, or the existing-customer exception in s.69(3), plus an opt-out on every message). The CPA opt-out registry governs a separate, absolute question: whether a specific consumer has registered a pre-emptive block, in which case the organisation may not market to them regardless of any POPIA consent on file, and must remove their data by the next monthly cleanse. Both regimes must be satisfied for the same email, SMS, WhatsApp message or call.
- **Sector carve-outs.** Not every consumer complaint against the organisation is a CPA/NCC matter. Financial products and services (banking, credit, long- and short-term insurance) are generally handled by the National Financial Ombud Scheme South Africa ("NFO"), which since 1 March 2024 has replaced the Ombudsman for Banking Services, the Credit Ombud and the long- and short-term insurance ombuds; the National Credit Regulator remains the NCA regulator. Motor-industry disputes usually run through the Motor Industry Ombudsman of South Africa ("MIOSA"); electronic communications complaints may sit with ICASA. Screen every complaint at intake for a sector carve-out before assuming the CPA/NCC route applies.
- **Compliance notice or prosecution, never both.** Where the NCC issues a compliance notice under s.100 and the organisation disregards it, the Commission must choose between applying to the Tribunal for an administrative fine and referring the matter for prosecution under s.110(2); it may not do both for the same notice. On the fine route the Tribunal may impose up to the greater of R1 million or 10% of annual turnover (s.112); on the prosecution route the offence under s.110(2) carries a fine or up to 12 months' imprisonment, or both

(s.111(1)(b)). Either is serious, and the route chosen shapes how the organisation responds once a notice is contested.

- **The three-year clock (s.116).** A complaint may not be referred to the Tribunal or a consumer court more than three years after the act or omission that caused it, or, for a continuing course of conduct, more than three years after that conduct ceased. A complaint outside this window is a ground for the NCC to issue a notice of non-referral (s.72(1)(a)) — but a complaint received near the edge of the window should still be logged and assessed, not assumed time-barred.
- **Provincial consumer protection authorities are uneven.** Section 84 lets a province operate its own consumer protection authority, able to issue compliance notices on the Commission's behalf for conduct confined to that province, mediate disputes and refer matters to a provincial consumer court. All nine provinces nominally maintain an office, but their operational capacity varies considerably and a complaint referred there can sit for longer than one referred to the NCC directly. Treat a provincial referral as a live channel to track, not a channel to rely on for a fast outcome.

Roles used. CPA Compliance Officer (CO, the process owner and spine); Customer Service or Complaints Handler (CS); Marketing or CRM Administrator (MKT); Legal Adviser (LA); Finance (FIN); IT; Senior Sign-off (SSO, e.g. COO or Head of Compliance); Board or Risk / Social and Ethics Committee (BOARD). External: National Consumer Commission (NCC); accredited industry ombud, most commonly the Consumer Goods and Services Ombud (OMBUD/CGSO); National Consumer Tribunal (NCT); provincial consumer protection authority (PCPA); National Financial Ombud Scheme South Africa (NFO) or other sector ombud (SECTOR OMBUD); Information Regulator (IR); National Prosecuting Authority (NPA); the consumer or complainant (CONS).

Master flow at a glance

Every complaint enters through one intake, whichever door the consumer used. Phase 2 classifies the matter and screens for sector carve-outs; Phase 3 is the organisation's own attempt at resolution; Phase 4 is external escalation, which can run through an ombud, the NCC, or directly to the Tribunal, depending on which route the consumer or the Commission chooses; both close in Phase 5. The direct-marketing and opt-out registry track is not a phase: it is a standing obligation that runs continuously from the day the organisation first sends a marketing communication, independent of any single complaint.

Complaint routes compared

Feature	Internal resolution	Accredited industry ombud (e.g. CGSO)	NCC referral (s.71)	Direct Tribunal application (s.69(a))	Court (s.69(d))
Who initiates	Consumer, to the organisation directly	Consumer, or the organisation as a matter of policy; the ordinary route where the organisation is subject to an ombud with jurisdiction (s.69(b))	Consumer (Annexure E), where no ombud with jurisdiction applies (s.69(c), s.71(1)); or the Commission itself (s.71(2))	Consumer, only where the Act permits direct referral for that dispute	Consumer; s.69(d) refers to exhausting other national-legislation remedies, but courts do not lightly read it as excluding direct action (Motus v Wentzel, SCA 2021; Pure Silk Invest v Martin, WCHC 2025). LA to assess any s.69(d) defence
Statutory basis	Not separately	s.69(b); s.82(6)	s.69(c); s.71–	s.69(a)	s.69(d)

Feature	Internal resolution	Accredited industry ombud (e.g. CGSO)	NCC referral (s.71)	Direct Tribunal application (s.69(a))	Court (s.69(d))
	regulated; BP and, for CGSO members, the industry code	accreditation; industry code	s.73 (s.72(1)(b) referral to ADR or ombud)		
Typical process	Complaint handling, investigation, written response	Mediation or conciliation under the scheme's rules	Assessment, possible investigation (s.72), consent order (s.74) or compliance notice (s.100)	Tribunal hearing under s.75(4) and imported National Credit Act procedure	Ordinary civil litigation
Cost to consumer	Free	Free	Free	Tribunal fee (prescribed)	Court fees
Typical outcome	Remedy agreed, refund, repair, replacement, apology	Recommendation or settlement; unresolved matters may still go to the NCC	Notice of non-referral, consent order, compliance notice, or referral to the Tribunal	Order under CPA and imported NCA remedy powers, including an administrative fine (s.112)	Civil judgment, damages, costs
Organisation's exposure	Reputational; sets the evidence trail for every later stage	Reputational; a poor record here weakens the organisation's position if the matter escalates	Compliance notice; referral to the Tribunal; possible criminal referral (s.110(2)) if the notice is disregarded	Administrative fine up to the greater of R1 million or 10% of annual turnover (s.112); interim relief (s.114)	Damages, costs, adverse judgment

Integrated swimlane view

Read each phase column top to bottom to see who acts and who hands off; read each lane left to right to see one party's whole job. The CO lane is the spine: every complaint channel and every escalation route reports back through it, and the direct-marketing compliance lane runs underneath every phase, independently of any single case.

Phase 0 — Readiness (standing obligations)

Phase 0 has no case trigger: it must be in place before the first complaint or the first marketing communication, because the organisation's exposure on both fronts is decided by controls that must already exist. An organisation that has not registered as a direct marketer risks non-compliance once the NCC's registration deadline (end-December 2026) passes, and is exposed to enforcement from 15 April 2027; an organisation with no complaints process cannot produce the evidence trail the substituted Annexure E complaint form now expects of a consumer's "steps already taken to resolve the complaint".

Step	Organisational action	Owner	Deadline	Form / output	Authority
0.1 Confirm CPA applicability	Map every category of transaction and counterparty (consumers, juristic persons under the R2 million threshold, franchisees) against the CPA's scope and exclusions.	LA, CO	Now; review annually	CPA applicability memo	s.5(2)(b), s.6; GN 294, GG 34181 (1 April 2011)
0.2 Designate a compliance officer	Name a CPA/NCC compliance officer with explicit accountability, and an alternate. Reports to a governance structure (BOARD or SSO). The CO is the designated official for CGSO purposes.	BOARD	Now	Appointment letter	BP; CGSO Code
0.3 Adopt a complaints-handling policy	Board-approved policy covering intake channels, acknowledgement timelines, investigation, escalation routes (internal, ombud, NCC, Tribunal), remedies, records, and staff escalation triggers. Cover every consumer-facing department, not only a	BOARD, LA	Now; review annually	Complaints policy	BP; Annexure E evidentiary expectations

Step	Organisational action	Owner	Deadline	Form / output	Authority
	call centre.				
0.4 Register on the NCC opt-out registry	Determine whether the organisation is a "direct marketer" (any promotional email, SMS, WhatsApp, call or newsletter makes it one); if so, complete the form corresponding to Annexure P (company registration number, VAT number, directors, contact details, B-BBEE certificate, valid tax clearance); pay the initial registration fee; obtain and file the registration confirmation.	MKT, FIN, CO	Before any direct marketing; in any event by end-December 2026 (NCC timetable, 7 Oct 2026)	Annexure P submission; NCC confirmation	Reg 4(7)(a); Annexure P; Annexure N
0.5 Diarise annual renewal	Renew registration at the anniversary of registration each year; pay the prescribed renewal fee; keep registry information (contact details, physical address) accurate and current at all times.	CO, FIN	Annually; continuous	Renewal proof	Reg 4(7)(b), (d)
0.6 Join or confirm the applicable ombud scheme	Confirm membership of the Consumer Goods and Services Ombud (CGSO) or the sector-specific accredited scheme that actually covers the organisation's business (motor industry, financial services, credit, electronic communications); do not assume CGSO applies if a sector carve-out does.	LA, CO	Now	Membership confirmation	s.82(6); sector legislation
0.7 Marketing systems and	Build every communication template,	MKT, IT	Now; review with every	Template library; opt-out log	Reg 4(7)(c), (e)–(g), (j); 24 hours

Step	Organisational action	Owner	Deadline	Form / output	Authority
identification	sender ID, call-centre script and CRM export so that the organisation's name, electronic address, physical address and contact number are identifiable to the recipient, that communications are labelled and identifiable on the recipient's device, and that a functioning opt-out is present and actioned within 24 hours (BP; no statutory period found).		campaign		BP
0.8 Monthly cleansing workflow	Build a monthly export-submit-suppress cycle against the NCC registry, covering the full marketing database, with a suppression list cross-referenced before every send; budget the R0.12 cleansing fee (Annexure N): the Regulations refer to a fee per data entry, while the NCC Draft Guidelines (para 7.2) charge per blocked consumer matched; budget on the full database submitted until the final Guidelines settle the basis (verify). Cleansing is free from December 2026 to 30 April 2027 under the draft Guidelines.	MKT, IT, FIN	From December 2026 (no-fee cleansing to 30 April 2027); monthly thereafter	Cleansing log	Reg 4(7)(h)–(i); Annexure N; NCC Draft Guidelines para 7.2 (draft)
0.9 POPIA alignment	Confirm a lawful basis (consent, or the existing-customer exception under POPIA s.69(3)) for every marketing list;	IR liaison, LA, MKT	Now; per list	POPIA consent register	POPIA s.69(1)–(4)

Step	Organisational action	Owner	Deadline	Form / output	Authority
	capture consent wording, date, time, source and channel; ensure every communication carries an opt-out the recipient may use free of charge.				
0.10 Contract and pricing review	Audit standard-form contracts against ss.48, 49 and 51 for unfair, unreasonable or unjust terms; remove liability-limitation clauses that waive implied statutory warranties and blanket indemnities; align automatic-renewal notices to the 40–80 business day window; verify quotes, invoices and displayed prices match, with the lower price applying on any discrepancy.	LA, FIN	Now; review annually	Contract review memo	ss.14, 23, 48–51
0.11 Warranty and returns operations	Publish a compliant returns and refunds policy; operationalise the s.56 implied warranty: within six months of delivery the **consumer chooses** repair, replacement or refund for goods failing s.55, returned at the supplier's risk and expense; if a repair fails or a further defect appears within three months, replace or refund (s.56(3)); these rights are in addition to any express warranty (s.56(4)). Document the s.16 cooling-off cancellation and 15-business-day refund	Ops, LA	Now	Returns policy; process map	ss.16, 55–61 (s.56(2)–(4)); ECTA s.44

Step	Organisational action	Owner	Deadline	Form / output	Authority
	process for any agreement resulting from direct marketing; s.16 does not apply where ECTA s.44 governs the transaction (online sales): apply the ECTA cooling-off and refund rules to those.				
0.12 Records and evidence system	A restricted-access complaints register with an audit trail; a separate NCC/direct-marketing compliance file (registration, renewals, cleansing logs, consent records); a POPIA-aligned retention schedule for both. Retain complaint files for at least three years after closure (CGSO Code; s.116), then destroy or de-identify per POPIA s.14.	CO, IT	Now	System access matrix; retention schedule	POPIA s.14, s.19; s.116; CGSO Code; BP
0.13 Train and raise awareness	Train frontline and complaints staff on the CPA rights, the complaints process and escalation triggers; train marketing, IT and finance on the registry and cleansing cycle; train sales staff that verbal commitments are legally binding (script control).	HR / L&D	Before go-live; at least annually	Attendance records	s.22 (plain language); BP

Consumer side of Phase 0. Nothing is owed yet, but the consumer's eventual routing depends on this phase: an organisation with no visible complaints channel or ombud membership pushes consumers straight to the NCC or the Tribunal, where the substituted Annexure E form now expects a documented account of "steps already taken to resolve the complaint" that the organisation had no opportunity to take.



Watch. A lapsed NCC registration or a missed monthly cleanse is usually discovered only when a complaint or an NCC inspection surfaces it. Check registration and cleansing status monthly, not only when a complaint arrives.

Phase 1 — Receipt and intake

The clock starts on the day the organisation, an ombud, or the NCC first has notice of the complaint, not when the compliance officer first reads it. Day 0 is the day of receipt.

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
1.1 Recognise and forward	A consumer complains by any channel: call centre, email, social media, in-store, a letter of demand, or a sales representative is told directly.	Forward to the CO the same day without argument or informal dismissal.	Any recipient, CS, LM	Same day (BP)	C01 intake record	BP
1.2 Log and reference	CO receives the complaint.	Open a case file; assign a reference number; record date, time, channel, complainant details, and a verbatim or near-verbatim account of the complaint.	CO	Day 0	C01	BP
1.3 Recognise an external-channel arrival	Complaint arrives as an ombud notification, an NCC notice of investigation, a compliance notice, a Tribunal application, or a summons or letter of	Treat the external document as day 0 for that channel's own clock (see section 12); open or link to the existing case file if one exists; brief LA immediately. A summons or letter of demand is live from day 0: do not	CO, LA	Same day	C01; C09 (external notice log)	s.72; s.100; s.75; s.69(d)

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
	demand, rather than directly from the consumer.	assume a court will decline it under s.69(d).				
1.4 Acknowledge receipt	Every complaint with a return channel.	Send a written acknowledgement: reference number, what happens next, expected timeline, a named contact. Include a short POPIA s.18 notice: purpose, possible disclosure to an ombud, NCC or Tribunal, and retention period. Where the organisation is a CGSO participant, note that the CGSO generally expects the supplier to have had 15 business days to resolve the complaint before it accepts escalation.	CS, CO	BP within 5 business days	C02 acknowledgement	BP; POPIA s.18; Annexure E evidentiary expectations
1.5 Sector carve-out screen	Complaint logged.	Check whether the subject matter sits with a sector ombud instead of CGSO/NCC (financial products, credit agreements, motor industry, electronic communications); redirect and tell the consumer where to take it if so, while still logging the CPA elements that remain. Where the	CO, LA	Day 0–2	C03 screening note	s.69(b)–(c); sector legislation

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
		organisation is subject to an ombud with jurisdiction (CGSO, MIOSA, NFO), record that this is the consumer's ordinary route (s.69(b)) and say so respectfully in the acknowledgement; never refuse to log the complaint.				
1.6 Evidence preservation	Complaint concerns a product, service or transaction still traceable in company systems.	Preserve purchase records, contracts, correspondence, call recordings and any defective goods; do not allow routine deletion cycles to run over evidence.	CS, IT	Day 0–2	C04 evidence log	BP
1.7 Diarise all clocks	File opened.	Calendar: internal response target; any ombud or NCC deadline attached to the channel of arrival; the s.116 three-year outer limit from the underlying act or omission; any compliance-notice objection window if one is later issued. Check whether the organisation is or was already a respondent in other CPA proceedings on substantially the same conduct (s.116	CO	Day 0	C05 tracker	s.101(1); s.116

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
		bar).				

Consumer obligations at this stage. None yet under the CPA itself, beyond providing enough detail to identify the transaction and the complaint; the substituted Annexure E form later expects the consumer to show what they did at this stage, so a clear, dated acknowledgement protects the organisation as much as it serves the consumer.

Hand-offs. CS or any recipient → CO (same day). CO → LA (sector carve-out, external-channel arrivals). CO → IT (evidence preservation).

Watch. A complaint dismissed informally at the front line, with no C01 entry, leaves the organisation unable to show the "steps already taken to resolve the complaint" that the 2026 Annexure E form now requires a complainant to describe — and by implication, that the NCC now expects a supplier to be able to corroborate.

Phase 2 — Triage and route determination

By internal day 5 the organisation should know what kind of CPA matter this is, whether it is genuinely a CPA matter at all, and which of the s.69 routes the consumer has used or is likely to use next.

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
2.1 CPA applicability check	Complaint logged.	Confirm the transaction falls within the CPA (consumer, or juristic person under the R2 million threshold); confirm no exclusion applies (e.g. transactions before 31 March 2011, certain credit-agreement or employment matters).	LA	Day 1–3	C06 memo	s.5(2)(b), s.6; GN 294, GG 34181 (1 April 2011)
2.2 Classify the complaint	Applicability confirmed.	Categorise: direct-marketing/opt-out complaint; unfair or prohibited contract term; implied warranty or defective goods; pricing or advertising; cooling-off/cancellation (s.16, or ECTA s.44 for online sales); s.20 return of goods (10 business days after delivery; refund less any s.20(6) charge); s.14 fixed-term cancellation (20 business days'	CO, LA	Day 1–3	C06	ss.14, 16, 17, 20, 22, 29–31, 48–51, 55–61; Reg 5; ECTA s.44

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
		written notice; reasonable penalty per Reg 5; not between juristic persons); s.17 booking/reservation cancellation (reasonable charge; none on death or hospitalisation); unsafe goods / harm caused (ss.60–61); general fair dealing or plain-language complaint. Multiple categories may apply.				
2.3 Identify the route already used	Channel of arrival established (1.3).	Confirm whether the complaint is still purely internal, has gone to an ombud, has been referred to the NCC (Annexure E received or acknowledged), or is a direct Tribunal application. Each has its own clock and its own evidentiary standard. Record whether the ombud with jurisdiction (s.69(b)) has been used; if it has been bypassed, LA may respectfully point the consumer or the NCC to it (s.69(c), s.72(1)(b)). Check the s.116 bar (other CPA proceedings on substantially the same conduct).	CO, LA	Day 1–3	C05	s.69; s.72(1)(b); s.116

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
2.4 Merits and exposure assessment	Classification complete.	Assess the strength of the complaint on the facts; estimate exposure (refund, repair, replacement, reputational, and — if the matter could reach the Tribunal — administrative fine risk under s.112); flag any pattern of similar complaints.	CO, LA, FIN	Day 3–5	C07 assessment	BP
2.5 Escalation trigger check	Assessment complete.	Flag for senior sign-off: complaints involving repeat conduct, a compliance-notice risk, potential prosecution grounds (s.108–s.110), or reputational exposure. Any complaint alleging injury, property damage or a safety hazard: same-day escalation to LA, SSO and insurer.	CO, SSO	Day 3–5	C07	BP; ss.60–61
2.6 Assign owner and target date	Triage complete.	Assign an internal owner for resolution; set an internal response target proportionate to complexity (BP 10 business days for straightforward matters, noting the CGSO generally allows the supplier 15 business days before escalation; longer with reasons recorded for complex	CO	Day 5	C05	BP

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
		ones).				

Consumer obligations at this stage. Provide any further information reasonably requested to allow the complaint to be assessed; a consumer who has already engaged an ADR agent or ombud should say so, since the Annexure E form later asks for exactly that history.

Hand-offs. CO → LA (applicability, classification). CO → FIN (exposure). CO → SSO (escalation trigger).

Watch. Do not let "the consumer is being difficult" substitute for a documented merits assessment. A Tribunal or an ombud tests the organisation's conduct against the Act, not against the consumer's tone.

Phase 3 — Internal resolution

The CPA does not compel a supplier to resolve every complaint internally before a consumer may go elsewhere, but a genuine, well-documented attempt is the organisation's best evidence at every later stage, and CGSO and most industry codes expect it as a condition of membership.

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
3.1 Investigate	Owner assigned.	Gather facts: transaction records, product or service history, prior complaints, staff accounts. Interview relevant staff where conduct (e.g. a verbal sales commitment) is in dispute.	Owner, CO	Per target date	C08 investigation note	BP
3.2 Legal or technical review	Investigation raises a contract, warranty or pricing question.	LA reviews contract terms against ss.48–51 and cancellation and return rights under ss.14, 17 and 20; technical or quality staff assess a warranty claim against ss.55–61, applying s.56(2)–(3): the consumer chooses repair, replacement or refund, and a failed repair within three months triggers replacement or refund.	LA, Ops	As needed	C08	ss.14, 17, 20, 48–51, 55–61
3.3 Propose a	Facts	Propose repair,	CO, SSO	Per target	C09 remedy	BP; s.56(2)–

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
remedy	established.	replacement, refund, price correction, apology, or a combination; cost and approve within delegated authority. Where s.56(2) applies, implement the remedy the consumer has directed; do not substitute a different one.		date	proposal	(3)
3.4 Respond in writing	Remedy approved.	Written response to the consumer: findings, the remedy offered (or reasons for declining), and — if declined or only partly resolved — the consumer's further options (ombud, NCC, Tribunal where available, or a note that the organisation is a CGSO member).	CO	Target date	C10 response letter	BP
3.5 Implement the remedy	Consumer accepts.	Deliver the agreed remedy; confirm in writing; close internally, subject to the post-closure watch in Phase 5.	Ops, FIN	Per agreement	C11	BP
3.6 Escalation on impasse	Consumer rejects the response, or does not reply within a reasonable	Record the impasse; prepare for external escalation (Phase 4); do not treat silence as acceptance without	CO	On impasse	C10	BP

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
	period.	a documented follow-up attempt.				

Consumer obligations at this stage. Engage with the process in good faith; provide requested evidence; a consumer who escalates without engaging internally is entitled to do so under s.69, but the organisation's own record of a genuine offer remains relevant to any later assessment by an ombud, the NCC or the Tribunal.

Hand-offs. CO → LA (contract/warranty review). CO → Ops, FIN (remedy delivery). CO → external escalation track (impasse).

Watch. A remedy offered only after the consumer has already gone to the NCC or an ombud is still worth making — it can narrow or resolve the matter — but is weaker evidence of good faith than an offer made promptly at first contact.

Phase 4 — External escalation: ombud, NCC and Tribunal

Once a matter leaves internal resolution, it can run through several routes at once or in sequence, and each has its own procedure and clock. This phase is organised by the escalation event, not by a single linear timeline.

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
4.1 Ombud referral	Consumer refers the matter to CGSO or the applicable accredited/sector ombud.	Respond to the ombud's request for information within its stated timeframe; cooperate with mediation or conciliation; keep LA briefed on any proposed settlement. Share only the personal information the ombud needs, on a POPIA s.11 basis; treat health information in warranty or injury complaints as special personal information.	CO, LA	Per ombud's process	C12 ombud response file	s.82(6); scheme rules; POPIA ss.11, 26–27
4.2 NCC complaint received (Annexure E)	Consumer files, or the Commission itself initiates, a complaint under s.71.	Confirm receipt of any Commission correspondence; brief LA; begin assembling the same evidence trail requested of the consumer on	CO, LA	On receipt	C13 NCC response file	s.71(1)–(2)

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
		Annexure E (proof of communication, proof of purchase or the contract, any ADR closing letter, steps already taken).				
4.3 Commission disposition	Commission processes the complaint under s.72.	Respond to whichever disposition follows: a notice of non-referral (matter ends, subject to the consumer's own further rights); referral to an ADR agent, provincial authority or consumer court; referral to another regulator; or direction to an inspector to investigate.	CO, LA	Per Commission timeline	C13	s.72(1)–(2)
4.4 Investigation	Inspector directed to investigate.	Respond to any summons (s.102) and to any lawful entry and search (ss.103–105) through LA; produce documents requested; brief staff not to obstruct, mislead or improperly influence the process — each carries a separate offence exposure (ss.108–109).	LA, CO	As required	C14 investigation response	ss.72(1)(d), 102–105, 108–109

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
4.5 Consent order negotiation	Investigation concludes; Commission and organisation agree terms.	Negotiate terms with the Commission; agree wording carefully, since a consent order confirmed by the Tribunal or a court is binding without a hearing on the merits; any damages component requires the complainant's consent.	LA, SSO	Per negotiation	C15 draft consent order	s.74(1)–(3)
4.6 Compliance notice	Commission has reasonable grounds to believe prohibited conduct occurred.	Read the notice carefully for the provision alleged, the extent of non-compliance, the steps required, the deadline, and the stated penalty risk. Comply within the period, or object.	LA, CO, SSO	Notice states the period	C16 compliance notice response	s.100(1)–(5)
4.7 Compliance notice objection	Organisation disputes the notice.	Apply to the Tribunal to review the notice within 15 business days of receipt (longer on good cause); prepare the record for review.	LA	15 business days (s.101(1))	C17 Tribunal review application	s.101(1)–(3)
4.8 Referral to the Tribunal	Commission refers the matter under s.73(2)(b); or, after a non-referral notice not based on s.116, the consumer refers the matter to	Brief LA; prepare the Tribunal file; respond within the prescribed form and timeframe under the National Consumer	LA, SSO	Per Tribunal Rules (confirm current periods)	C18 Tribunal file	ss.73(2), 75(1), 112, 116

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
	the provincial consumer court (s.75(1)(a)) or applies to the Tribunal for leave (s.75(1)(b)); or the matter is a direct s.69(a) application.	Tribunal Rules.				
4.9 Administrative fine application	Commission applies to the Tribunal for a fine under s.112.	Prepare submissions on the s.112(3) factors: nature, duration, gravity and extent of the contravention; loss or damage caused; the organisation's behaviour and cooperation; market circumstances; profit derived; any prior contraventions.	LA, SSO, BOARD	Per Tribunal timetable	C19 fine submissions	s.112(1)–(4)
4.10 Interim relief	Commission or consumer seeks urgent Tribunal relief pending final determination.	Respond urgently through LA; assess operational impact of any interim order.	LA, SSO	Urgent	C20	s.114
4.11 Sector ombud escalation	Complaint properly belongs with the NFO (banking, credit, insurance), MIOSA or another sector scheme, identified late.	Redirect formally, with reasons, and continue to cooperate; a late redirection does not stop the underlying CPA exposure if CPA elements remain.	CO, LA	On discovery	C03 (updated)	Sector legislation

Consumer obligations at this stage. Use the prescribed form and manner for the route chosen (Annexure E for an NCC referral); disclose prior ADR or ombud engagement and provide the closing letter where one exists; respect the s.116 three-year limit for referring the matter to the Tribunal or a consumer court.

Hand-offs. CO → LA (every escalation event). LA → the Commission, the Tribunal, or the relevant ombud (formal responses). SSO → BOARD (fine exposure, reputational escalation).

Watch. A compliance notice and a prosecution referral cannot both proceed on the same notice (s.100(6), s.110(2)) — the fine route carries the s.112 ceiling and the prosecution route a fine or up to 12 months' imprisonment, or both (s.111(1)(b)); either is serious, so contesting or complying promptly is usually the safer course once LA has assessed the notice's validity.

Phase 5 — Outcome, remedy and closure

A matter is closed only when the remedy has been delivered, any Tribunal or consent order has been complied with in full, and the file shows no live escalation window remains open.

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
5.1 Tribunal order received	Tribunal makes an order (consent order, compliance-notice confirmation, fine, interdict, or other relief).	Confirm terms; calendar every compliance step and deadline in the order; brief the business units affected.	LA, CO	On receipt	C21 order tracker	s.74; s.75(4); s.101(2)–(3); s.112
5.2 Pay any administrative fine	Fine confirmed.	Pay into the National Revenue Fund as directed; file proof; report to BOARD.	FIN, CO	Per order	Proof of payment	s.112(5)
5.3 Appeal or review	Organisation disputes the Tribunal's decision.	LA to advise on review to the High Court (confirm current procedure and any leave requirements against the National Consumer Tribunal Rules before filing).	LA, SSO	Per applicable rules (verify)	C22 review application	s.75(4); NCT Rules (verify)
5.4 Deliver the remedy	Consent order, ombud settlement, or internal resolution accepted.	Deliver refund, repair, replacement or other remedy; confirm delivery in writing; close the consumer-facing loop.	Ops, FIN	Per agreement	C11	BP
5.5 Compliance	All steps in a	Request a	CO	On	C23	s.100(4)–(5)

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
certificate	compliance notice completed.	compliance certificate from the Commission; file it with the case record.		completion		
5.6 Close the file	All of the above complete.	Consolidate the record; confirm no open escalation window (ombud, Tribunal review, sector referral) remains; set a retention date under the POPIA-aligned schedule, at least three years after closure (CGSO Code; s.116).	CO	On closure	C05 closing entry	POPIA s.14; s.116; CGSO Code
5.7 Post-closure watch	High-value, repeat-pattern, or Tribunal-ordered matters.	Watch for recurrence of the same conduct across other customers; a pattern can itself become a fresh complaint or an NCC-initiated investigation under s.71(2).	CO, LA	Ongoing (BP 12 months)	C24	s.71(2)

Consumer obligations at this stage. Confirm receipt of the remedy; where dissatisfied with a Tribunal order, pursue any further right of review through the proper forum rather than repeat complaints through the original channel.

Hand-offs. LA → FIN (fine payment). CO → Ops (remedy delivery). CO → BOARD (governance reporting on Tribunal outcomes).

Watch. “The refund was processed” is not the same as “the file is closed”. Confirm no compliance-notice deadline, Tribunal compliance step, or review window is still running before marking a matter closed.

Phase 6 — Governance and learning

Phase 6 turns individual complaints and the standing direct-marketing obligations into control improvements and board oversight. Almost none of it carries a statutory deadline, so it must be fixed in policy or it will be skipped.

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
6.1 Root-cause review	Complaint closed, or a pattern identified.	Identify which control failed: contract drafting, pricing process, warranty handling, sales script, marketing suppression. Review the organisation, not the consumer's persistence.	CO, LA	BP within 30 days of closure	C25 root-cause memo	BP
6.2 Governance reporting	Quarterly cycle.	Volumes by category and channel; timeliness against internal targets; ombud and NCC referrals; compliance notices and outcomes; Tribunal matters and fines; registry registration and cleansing status; POPIA alignment.	CO, Company Secretary	Quarterly	C26 dashboard	King Code governance principles (verify edition); BP
6.3 Direct-marketing compliance audit	Quarterly, or before any major campaign.	Confirm registration is current, cleansing logs are complete, suppression is verified pre-send, and consent	CO, MKT, IT	Quarterly	C08 (marketing variant)	Reg 4(7); POPIA s.69

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
		records are intact for every active list.				
6.4 Policy and contract refresh	Annually, or on any legal change.	Update the complaints policy, standard-form contracts, warranty and returns policy, and direct-marketing policy; re-communicate to affected staff.	LA, CO	At least annually	Revised policy	BP
6.5 Training refresh	Annually and after significant complaints.	Refresh frontline, marketing, IT and sales training, including any lessons from a compliance notice or Tribunal matter.	HR / L&D	At least annually	Attendance records	BP
6.6 Legislative watch	Ongoing.	Track further CPA amendments or Bills, the NCC's phased registry timetable (7 October 2026) and the final Opt-Out Registry Guidelines, any new s.6 threshold determination (currently R2 million, GN 294 of 2011), National Consumer Tribunal Rules changes, and sector-ombud jurisdiction changes (e.g. the NFO's scope).	LA	Ongoing	Change log	s.120

Hand-offs. CO → Risk or Social and Ethics Committee. LA → policy owners. MKT → CO (audit findings).

Parallel track — direct marketing and the NCC opt-out registry

This track has no case trigger of its own: it runs continuously from the day the organisation first sends a marketing communication, and it is tested independently of any individual complaint by the Commission's own inspection and enforcement powers.

Event	Trigger	Organisational action	Deadline	Form	Authority
D1 Registration gate	Any proposed marketing communication.	Confirm the organisation is registered as a direct marketer before the first message is sent; no communication may be sent unregistered, not even one. NCC timetable (7 October 2026): register by end-December 2026; full enforcement from 15 April 2027.	Before sending; at the latest end-December 2026	Registration confirmation	Reg 4(7)(a), (j)
D2 Identification	Every communication.	Confirm name, electronic address, physical address and contact number are identifiable; confirm the communication is identifiable as such on the recipient's device; confirm the organisation is identifiable even where sent from or	Every send	Template checklist	Reg 4(7)(c), (e)–(g)

Event	Trigger	Organisational action	Deadline	Form	Authority
		through a public platform.			
D3 Opt-out mechanism	Every communication.	Confirm a functional opt-out is present; action any opt-out request within 24 hours across every channel used.	Within 24 hours of request (BP)	Opt-out log	Reg 4(7); BP
D4 Pre-emptive block check	Before every campaign.	Cross-reference the send list against the most recent cleansing results; suppress every record flagged with a pre-emptive block, regardless of any consent on file.	Before every send	Suppression log	Reg 4(7)(h)
D5 Monthly cleansing	Monthly cycle.	Submit the marketing database to the Commission for cleansing; pay the R0.12 fee (Annexure N; per data entry under the Regulations, per blocked consumer matched under Draft Guidelines para 7.2: verify the final basis); no fee from December 2026 to 30 April 2027; download and apply the results; remove all flagged records. A cleansed list is valid for 30 days (draft Guidelines).	Monthly	Cleansing submission and results	Reg 4(7)(i); Annexure N; NCC Draft Guidelines (draft)
D6 Annual renewal	Anniversary of registration.	Renew and pay the prescribed fee; update any changed	Annually	Renewal proof	Reg 4(7)(b), (d)



Event	Trigger	Organisational action	Deadline	Form	Authority
		registry information.			
D7 Call-time restrictions	Any direct-marketing telephone call.	No calls on Sundays or public holidays; Saturdays 09:00–13:00 only; all other days 08:00–20:00 only. Applies to direct marketing to a consumer at home; departures only on the consumer's request or agreement (express written agreement for a call deliberately scheduled in a prohibited period). Keep proof of dispatch time.	Every call	Dialling rules	s.12(2) and the prescribed-times notice, items 1–3
D8 POPIA consent record	Every marketing list.	Record wording presented, date, time, source and channel for consent obtained; confirm the existing-customer exception basis where relied on instead.	Per list	POPIA consent register	POPIA s.69(1)–(3)
D9 Registry outage	Registry inaccessible for 24 hours or more (Commission's own duty, watch for the effect on the organisation's cleansing cycle).	Note the outage and its effect on the monthly cleansing deadline; retain evidence that the delay was not the organisation's fault.	On occurrence	Outage note	Reg 4(10)(e)
D10 Contact with a blocked consumer	Any proposed contact with a consumer who has registered a pre-emptive block.	A registered pre-emptive block overrides any previous or fresh consent until the consumer removes	On contact	Contact basis record	Reg 4(7)(h); NCC Draft Opt-Out Registry Guidelines (GG 55465, 2 Oct



Event	Trigger	Organisational action	Deadline	Form	Authority
		the block. Communications that are not primarily promotional (administering an existing order, delivery, account, complaint or warranty) may continue but must contain no promotional content. Record the basis for each contact.			2026), paras 12.2–12.5, 14–15 (draft; verify reg text)
D11 Inspection readiness	NCC inspection or audit.	Standing pack of registration proof, renewal history, cleansing logs, suppression evidence and consent records; a named person to respond.	Ongoing	D-pack	ss.102–105

Consumer obligations and conduct

A consumer keeps their remedies available by using the right channel, providing accurate information, and respecting the time limits the Act sets. The organisation should explain these in its acknowledgement letter, without using them to discourage a complaint.

Obligation	When	Consequence if not met	Authority
Use the prescribed form and manner for an NCC referral	Referring to the Commission	Formal defects; follow-up requests	s.71(1); Annexure E
Disclose prior ADR or ombud engagement and provide the closing letter	NCC referral	Incomplete Annexure E; possible delay	Annexure E
Refer to the Tribunal or a consumer court within three years	From the act or omission, or cessation of continuing conduct	Notice of non-referral; time-barred	s.116
Consider s.69(d) (other national-legislation remedies) before approaching a court	Before litigation	LA to assess any s.69(d) defence; courts do not lightly read s.69(d) as excluding direct action (Motus v Wentzel [2021] ZASCA 40; Pure Silk Invest v Martin [2025] ZAWCHC 568)	s.69(d)
Provide accurate identity and contact information	Every channel	Delay; difficulty verifying the complaint	Annexure E
Cooperate with any NCC investigation, ombud process or Tribunal proceeding	Throughout	Matter may be dismissed or delayed	ss.72–75
Not knowingly provide false information to a regulator	Throughout	Offence	s.109

Rights the organisation must not obstruct. Choosing any of the s.69 routes; lodging a complaint with the NCC on the prescribed form; after a non-referral notice not based on s.116, referring the matter to the provincial consumer court (s.75(1)(a)) or applying to the Tribunal for leave (s.75(1)(b)); the s.16 cooling-off cancellation right; the implied warranty of quality (ss.55–61), including the

consumer's choice of repair, replacement or refund (s.56(2)) and replacement or refund after a failed repair (s.56(3)); return of goods (s.20) and cancellation of fixed-term agreements and bookings (ss.14, 17); a functioning, free opt-out on every marketing communication; registering a pre-emptive block free of charge.



Hand-offs and interfaces register

Every hand-off carries a deadline or an evidentiary risk: send the minimum information needed, keep proof of what was sent, to whom and when, and log it against the case file.

Party or system	Trigger	What is handed over	When	Step	Authority
Consumer	Every stage	Acknowledgement, response, remedy confirmation	Throughout	1.4, 3.4, 5.4	BP
Accredited industry ombud (e.g. CGSO)	Referral or membership process; ordinary route where it has jurisdiction (s.69(b))	Case file, response to information requests	Per scheme timeline	4.1	s.69(b); s.82(6); POPIA s.11
National Consumer Commission	Referral, investigation, compliance notice	Evidence, submissions, compliance-notice response	Per Commission or statutory timeline	4.2–4.7	ss.71–73, 100–101
National Consumer Tribunal	Referral, review application, fine application	Tribunal file, submissions	Per Tribunal Rules (verify)	4.7–4.10, 5.1, 5.3	ss.73(2), 75, 101, 112, 114
Provincial consumer protection authority	Referral within that province	Case file	Per PCPA process	s.69(c), s.84	s.84
Sector ombud (NFO, incl. credit; MIOSA; ICASA; NCR for NCA regulatory matters)	Complaint properly belongs elsewhere	Redirection with reasons	On discovery	1.5, 4.11	Sector legislation
Information Regulator	POPIA-linked complaint (marketing, data breach)	Cooperation, consent records	On request	D8	POPIA

Party or system	Trigger	What is handed over	When	Step	Authority
National Prosecuting Authority	Referral under s.73(1)(b) or after a disregarded compliance notice	Case file	Per referral	s.73(1)(b); s.110(2)	ss.108–111
Legal Adviser	Every escalation event, contract or warranty question	Privileged instructions	As triggered	Throughout	Privilege
Finance	Remedy delivery, fine payment, fee payment	Payment instruction, proof	Per event	5.2, 5.4; D1, D5–D6	s.112(5)
Marketing / IT	Registry compliance	Cleansing submissions, suppression evidence	Monthly	D1–D9	Reg 4(7)
Board / Risk or Social and Ethics Committee	Quarterly; material Tribunal or fine matters	Aggregate report; case oversight	Quarterly; as triggered	6.2	Governance



Forms register

Twenty-six internal forms (C01–C26) support the flow, with four statutory annexures. Statutory NCC forms are shown with their Annexure or section reference; internal GBS forms are prefixed C.

Form	Name	Used at	Statutory or prescribed?
C01	Intake record and case register entry	1.1–1.2	No
C02	Acknowledgement of receipt	1.4	No
C03	Sector carve-out screening note	1.5, 4.11	No
C04	Evidence preservation log	1.6	No
C05	Deadline tracker	1.7, 2.3, 2.6, 5.6	No
C06	CPA applicability and classification memo	2.1–2.2	No
C07	Merits and exposure assessment	2.4–2.5	No
C08	Investigation note (complaints and marketing-audit variants)	3.1, 6.3	No
C09	Remedy proposal	3.3	No
C10	Response letter to consumer	3.4, 3.6	No
C11	Remedy delivery confirmation	3.5, 5.4	No
C12	Ombud response file	4.1	No
C13	NCC response file (Annexure E companion)	4.2–4.3	No (Annexure E itself is prescribed — s.71(1))
C14	Investigation response (summons, entry and search)	4.4	No
C15	Draft consent order	4.5	No (form governed by s.74)
C16	Compliance notice response	4.6	No (notice itself is the prescribed form — s.100)
C17	Tribunal review application (compliance	4.7	Tribunal Rules prescribed form

Form	Name	Used at	Statutory or prescribed?
	notice)		(verify)
C18	Tribunal file (referral, direct application)	4.8	Tribunal Rules prescribed form (verify)
C19	Administrative fine submissions	4.9	No
C20	Interim relief response	4.10	No
C21	Order compliance tracker	5.1	No
C22	Review / appeal application	5.3	Court or Tribunal Rules prescribed form (verify)
C23	Compliance certificate request	5.5	No (certificate itself is prescribed — s.100(4)–(5))
C24	Post-closure watch log	5.7	No
C25	Root-cause memo	6.1	No
C26	Governance dashboard	6.2	No
—	**Annexure E** — Complaint form, s.71(1)	4.2	Yes, prescribed (substituted 2026)
—	**Annexure N** — Filing fee schedule	0.4–0.5, D5–D6	Yes, prescribed
—	**Annexure O** — Consumer pre-emptive block form	D4 (consumer-facing; organisation does not complete)	Yes, prescribed
—	**Annexure P** — Direct marketer registration form	0.4	Yes, prescribed

Confirm current Tribunal form numbers and any procedural forms against the National Consumer Tribunal Rules (GN 789 of 2007, as amended) before use; this flow could not verify their current numbering and content in full (see section 15).



Timeline calendar and penalties register

A routine complaint has one internal target (acknowledgement), an outer statutory limit of three years to reach the Tribunal or a consumer court, and — once escalated — several short, hard-edged windows. The direct-marketing track runs on its own monthly and annual rhythm regardless of any complaint.

Complaint calendar

When	Event	Type	Authority
Day 0	Receipt, logging, evidence preservation, clocks diarised	BP	—
By day 5 (BP)	Written acknowledgement	BP	—
By day 5	Sector carve-out screen complete	BP	—
By day 10 (BP, straightforward matters)	Internal response and remedy offer	BP	—
On receipt of a compliance notice	Comply within the period stated, or object	Statutory	s.100(3), (5)
Compliance notice + 15 business days	Last day to apply to the Tribunal for review (or later on good cause)	Statutory	s.101(1)
From act or omission (or cessation of continuing conduct)	3-year outer limit to refer to the Tribunal or a consumer court	Statutory	s.116
Monthly	Direct-marketing database cleansing against the registry	Statutory	Reg 4(7)(i)
Annually, at registration anniversary	Direct marketer registration renewal	Statutory	Reg 4(7)(b)
Every 3 years	New Annexure N fee tariffs published	Statutory	Reg 4(11)(b)
Every 24 hours or more of registry outage	Commission must inform the public	Statutory (Commission's duty)	Reg 4(10)(e)

When	Event	Type	Authority
By 31 December 2026	Direct-marketer registration deadline (NCC phased timetable)	Regulator timetable	Reg 4(7)(a); NCC, 7 Oct 2026
December 2026 – 30 April 2027	List cleansing phase (no cleansing fee under the draft Guidelines)	Regulator timetable	NCC, 7 Oct 2026; Draft Guidelines
15 April 2027	NCC full enforcement of the opt-out registry regime begins	Regulator timetable	NCC, 7 Oct 2026
From May 2027	Consumers can register pre-emptive blocks; cleansing fee applies	Regulator timetable	NCC, 7 Oct 2026; Annexure N
On a Tribunal order	Compliance per the order's own terms	Statutory	s.74; s.101(2)–(3); s.112

Penalties and offences register

Exposure	Who is exposed	Consequence	Authority
Prohibited conduct confirmed by the Tribunal	Organisation	Administrative fine: the greater of R1 million or 10% of the organisation's annual turnover in the preceding financial year	s.112(1)–(2)
Disregarding a compliance notice	Organisation	Administrative fine up to the greater of R1 million or 10% of turnover (via Tribunal application, s.112) or prosecution for the s.110(2) offence: a fine or up to 12 months' imprisonment, or both (s.111(1)(b)). Not both routes for the same notice.	s.100(6); s.110(2); s.111(1)(b); s.112
Hindering the administration of the Act	Any person, including staff	Fine or imprisonment up to 12 months (Magistrate's Court jurisdiction)	s.108; s.111(1)(b)–(2)
Offences relating to the Commission or Tribunal (contempt-equivalent conduct, false information, improper influence)	Any person, including staff	Fine or imprisonment up to 12 months	s.109; s.111(1)(b)
Altering or falsifying a displayed price, label or trade description without authority	Organisation, staff	Fine or imprisonment up to 12 months	s.110(1); s.111(1)(b)

Exposure	Who is exposed	Consequence	Authority
Breach of confidence by an NCC official	NCC officials, not the organisation	Fine or imprisonment up to 10 years	s.107; s.111(1)(a)
Unregistered or non-compliant direct marketing	Organisation	Administrative fine up to the greater of R1 million or 10% of annual turnover; NCC full enforcement from 15 April 2027 (registration due by end-December 2026)	Reg 4(7); s.112
Marketing to a consumer with a registered pre-emptive block	Organisation	Same fine exposure as above	Reg 4(7)(h)
Unfair, unreasonable or unjust contract term	Organisation	Term unenforceable; possible compliance notice and fine exposure	ss.48–51; s.52

Corrections to existing GBS materials and drafting issues

Comparing the GBS CPA Training Paper, the CPA/POPIA compliance paper, the presentation deck and the CPA/NCC Compliance Self-Assessment tool against the 2026 Amendment Regulations gazette text and the CPA itself turned up points that should be fixed before further client use. This flow already reflects them.

Corrections to GBS materials

#	Current statement	Where	Correction
1	Juristic-person turnover/asset threshold given as "R2 million"	Training Paper Module 5, FAQ B; Slide deck, Slide 10; Self-Assessment tool	**No change: R2 million is correct.** The s.6 threshold for s.5(2)(b) is R2 million (GN 294, GG 34181, effective 1 April 2011) and has not been revised since. Version 1.0 of this flow wrongly said it was R3 million, relying on Government Gazette 33621 (October 2010), which contained only the proposed determination. Do not change these materials. Instead, check every GBS CPA training paper, slide deck, self-assessment tool, client memo and proposal, and flag and correct any reference to R3 million (or to GG 33621 as the operative determination) to R2 million.
2	Regulation 4(7) described as "eight core obligations"	Training Paper Module 3, Slide 6; Compliance Assessment item B2 note	The gazetted Regulation 4(7), as amended, runs from paragraph (a) to (j) — ten sub-obligations, not eight. The GBS materials compress three distinct duties — being identifiable even on public platforms, not disseminating communications from an unidentifiable public-platform origin, and ensuring a communication transmitted to a recipient's device is identifiable by the recipient — into a single "ensure communications are identifiable" line. Keep the compressed language for training purposes, but the compliance checklist and any audit tool should test all ten paragraphs separately, each mapped to one duty and to steps

#	Current statement	Where	Correction
			0.4–0.8 and D1–D6 using the paragraph letters in the Gazette text (GN R.7380, GG 54521) (verify letters before building the tool).
3	The NCC established “under section 85” of the CPA	Training Paper Module 1, Slide 1.5	Correct: the NCC is established by s.85 of the CPA. No change needed.
4	Provincial escalation and “other regulators” not addressed at all	All GBS CPA materials	Add the s.84 provincial consumer protection authority route and the sector carve-outs (financial services, including credit, to the NFO, which since 1 March 2024 has replaced the Credit Ombud and the banking and insurance ombuds; NCA regulatory matters to the NCR; motor industry to MIOSA; electronic communications to ICASA) to the intake and escalation process; a complaint wrongly assumed to be an NCC/CGSO matter can sit unresolved with the wrong regulator.
5	No mention of the s.116 three-year time limit, the s.100–101 compliance-notice mechanism, the s.74 consent-order mechanism, or the s.112 administrative fine as the operative Tribunal remedy	All GBS CPA materials	These sit at the centre of NCC enforcement practice and are added throughout this flow (sections 4, 7, 8, 13 and 14).
6	“Administrative penalty risk” framed only as a consequence of the 2026 direct-marketing regime	Training Paper Module 1, Slide 1.5; Slide deck, Slide 2	The s.112 fine (the greater of R1 million or 10% of annual turnover) is the CPA’s general enforcement remedy, available for any confirmed prohibited conduct, not only direct-marketing non-compliance. Present it as the Act’s standing enforcement ceiling, with direct marketing as one route to it.
7	Annexure E summarised only as requiring “a documentary evidence trail”	Training Paper Module 5, FAQ D; Slide 10	The substituted Annexure E specifically asks whether the complaint was previously filed with the NCC (with reference number), whether it went through an ADR process (with the closing letter), the nature of the complaint, supplier details, a description, the steps already taken to resolve it, and the outcome proposed. Build the organisation’s own complaints file to answer each of these fields, not only “keep evidence”.
8	“Cleanse or consent” tension between regulation 4(3)(g) and regulation 4(7)(i) flagged as unresolved	CPA/POPIA compliance paper, “Cleanse or	On the gazetted text read in this review, regulation 4(3) subparagraphs (i), (j) and (k) were **deleted** by the 2026 amendment (item 4(c) of the Schedule),

#	Current statement	Where	Correction
		consent?" section	and the operative rule is now regulation 4(7)(h)–(i) alone: no marketing to a blocked consumer, and monthly removal of blocked data. There is no longer a live drafting tension between two surviving sub-regulations on this point; the "cleanse and consent" conclusion in the paper remains correct, but the stated legal basis for the tension should be corrected.

Drafting issues in the 2026 Regulations worth raising

- The definition of "electronic communication recipient", inserted into regulation 1(2), means "a consumer who receives electronic communication from the direct marketer **and has registered a pre-emptive block**". Regulation 4(7)(c) and (g), however, use that defined term to describe the general duty to make the marketer identifiable to *any* recipient and to ensure *any* communication is identifiable on the recipient's device — duties that only make sense if they apply to every recipient, not only those who have already opted out. Read literally, paragraphs (c) and (g) apply only to consumers who have already registered a block, which cannot have been the intended scope. Treat the identification duties as applying to every recipient as a matter of policy pending clarification, and flag this for any formal comment the organisation or its industry body makes to the Department.
- Annexure E is headed "Form – Complaint – Section 71(1)", but nothing in the gazetted amendment states what happens if a complainant cannot supply a required field (for example, no ID or passport number, or no ADR closing letter because no ADR process was used). The form's asterisked "required" fields are not matched to any stated consequence of omission in the text made available for this review.
- Regulation 4(9)(b) requires a consumer to "ensure that their information kept in the opt-out registry is always up to date", but no corresponding organisational or Commission duty compels a periodic reminder to consumers to do so, beyond the Commission's general website-information duty in regulation 4(10)(d). A registry error caused by a consumer's own stale information is a live risk the organisation cannot fully control for.

Revision history — v1.1 (19 October 2026)

Version 1.1 implements every finding of the independent verification and validation review of 15 October 2026 (1 Critical, 7 Major, 6 Minor, 5 Improvement), approved by the document owner. Items that could not be verified remain marked "(verify)" and are listed at the end of the table.

#	Finding (severity)	Where	Change made
1	Juristic-person threshold wrong (R3m, GG 33621) (Critical)	§01 point 3; steps 0.1, 2.1, 6.6; §15 correction 1; Sources	Threshold restated as R2 million (GN 294, GG 34181, 1 April 2011) everywhere. Correction 1 no longer tells GBS to change its materials to R3m: it confirms R2m is correct and instructs a check of all GBS material for any R3m reference.
2	D10 block-override "exception" contradicts NCC draft guidelines (Major)	Parallel track D10	Rewritten: a block overrides past and fresh consent; only non-promotional administrative contact continues; contact basis recorded.
3	s.69(d) court access overstated (Major)	§01 design principle; routes table; step 1.3; §11 table; Sources	Motus v Wentzel and Pure Silk v Martin reflected; summons and letters of demand treated as live from day 0; "court may decline" replaced by LA assessment of any s.69(d) defence.
4	s.69 route structure omitted (Major)	§01 point 2 and design principle; routes table; steps 1.5, 2.3; §12	Ombud with jurisdiction is the ordinary route (s.69(b)); s.69(c)/s.71(1) NCC route where no ombud; s.72(1)(b) referral; all doors still logged.
5	Credit Ombud treated as separate; NFO scope incomplete (Major)	§01 sector carve-outs; roles; steps 4.11, 6.6; §12; §15 correction 4; Sources	NFO described as replacing the banking, credit and insurance ombuds from 1 March 2024; NCR kept as NCA regulator; scheme referred to as "NFO" throughout.
6	NCC phased registry timetable and draft Guidelines missing (Major)	§01 purpose and legal status; Phase 0 intro; steps 0.4, 0.8, 6.6; D1, D5; §14 calendar and penalties; Sources	Timetable added (registration by end-December 2026; cleansing Dec 2026–Apr 2027; blocks from May 2027; enforcement from 15 April 2027); "already in breach" wording removed; draft Guidelines (GG 55465) and extended comment date cited.
7	Consumer's choice of remedy under s.56 omitted (Major)	Steps 0.11, 3.2, 3.3; §11 rights	Consumer directs repair, replacement or refund (s.56(2)); failed repair within three months triggers replace or refund (s.56(3)); s.56(4) noted.
8	s.14, s.17 and s.20 rights missing from triage (Major)	Steps 2.2, 3.2; §11 rights	Categories and core tests added; ss.14, 17, 20 and Reg 5 added to the Authority column.

#	Finding (severity)	Where	Change made
9	Fine and prosecution routes wrongly given the same ceiling (Minor)	§01 point 6; Phase 4 Watch; §14 penalties	Fine route: s.112 ceiling; prosecution route: fine or up to 12 months, or both (s.111(1)(b)).
10	ECTA s.44 exclusion from s.16 missing (Minor)	§01 point 1; steps 0.11, 2.2	ECTA s.44 carve-out added for online sales.
11	s.75(1)(a) route and s.116 limit missing after non-referral (Minor)	Step 4.8; §11 rights	Consumer-court referral (s.75(1)(a)) and Tribunal leave (s.75(1)(b)) both listed, excluding s.116 non-referrals.
12	Unnecessary caveat on s.85 (Minor)	§15 correction 3	Replaced with "Correct: the NCC is established by s.85 of the CPA. No change needed."
13	Reg 4(7) paragraph letters inconsistent (Minor)	§15 correction 2	Conflicting letters removed; ten-paragraph mapping to steps required. Partly open: exact letters to be taken from the Gazette text (see open items).
14	Forms count wrong (Minor)	§13 intro	"Twenty-six internal forms (C01–C26)… with four statutory annexures."
15	s.116 bar for parallel proceedings (Improvement)	Steps 1.7, 2.3	Check for other CPA proceedings on substantially the same conduct added.
16	Align with CGSO process and Code (Improvement)	Steps 0.2, 0.12, 1.4, 2.6, 5.6	CO named as CGSO designated official; 15-business-day CGSO window noted; complaint files kept at least three years after closure.
17	Unsafe goods / harm category (Improvement)	Steps 2.2, 2.5	Category (ss.60–61) and same-day escalation to LA, SSO and insurer added.
18	Call-time rule scope (Improvement)	D7	Applies to marketing to a consumer at home; departures only on request or agreement; proof of dispatch time.
19	POPIA in complaint handling (Improvement)	Steps 1.4, 4.1; §12	POPIA s.18 notice in acknowledgement; s.11 basis and special personal information noted for ombud disclosures.
20	Resolved: review questions	Steps 0.7, 0.8, D3, D5	Source of R3m identified (GG 33621 was the proposed determination). 24-hour opt-out marked BP (no statutory period found). Cleansing fee: free to 30 April 2027; basis per entry (Regulations) vs per blocked match (draft Guidelines para 7.2) noted.
21	Open: Regulation text (Unable to verify)	Subtitle; Sources; §15	GN R.7380 / GG 54521 numbers; exact Reg 4(7)(a)–(j), 4(9)(b), 4(10)(d)–(e), 4(11)(b) text; reg

#	Finding (severity)	Where	Change made
			1(2) definition; Annexure E fields; final cleansing-fee basis. Marked (verify).
22	Open: Tribunal Rules and case law (Unable to verify)	Steps 4.8, 5.3; §13; Sources	NCT Rules form numbers and periods; Julie Williams v Cell C, Holl v Rifle Range, Van Wyk v UPS holdings; MIOSA accreditation under s.82(6). Remain marked (verify).
23	Open: questions for the owner	Step 1.5; step 2.1; §01	Client sectors needing sector routing tables (NFO, FAIS, MIOSA, ICASA); online sales (ECTA step); CGSO membership; whether juristic-person customers' turnover or assets are recorded at the time of the transaction.

Sources

- Consumer Protection Act Amendment Regulations, 2026, Government Notice R.7380, Government Gazette 54521, Regulation Gazette 11983, Vol. 730, 15 April 2026 (notice and gazette numbers: verify) (uploaded file, read in full).
- Consumer Protection Act 68 of 2008, sections 5, 6, 11, 16, 22–23, 29–31, 48–52, 55–61, 69–75, 82, 84, 97, 100–116, 120 (consolidated text, cross-checked section by section against acts.co.za's section-level pages during this review).
- Protection of Personal Information Act 4 of 2013, s.69.
- Determination of threshold applicable to size of juristic person, GN 294, Government Gazette 34181, 1 April 2011 (s.6 juristic-person threshold for s.5(2)(b): R2 million; not revised since). Government Gazette 33621 (October 2010) contained only the proposed R3 million determination and is not the operative instrument. https://www.gov.za/documents/consumer-protection-act-determination-threshold-applicable-size-juristic-person; SAICA, Consumer Protection Act page.
- National Consumer Tribunal Rules, Government Notice 789 of 2007, as amended — cited for the Tribunal's general procedure; this review could not verify current lodging steps, response periods or fee amounts against the full consolidated Rules text, and they should be confirmed directly before this flow is relied on for a live Tribunal matter.
- Werksmans, "Do not call me, I'll call you … South Africa's 2026 CPA Amendment Regulations", 2026; Bowmans, "The National Consumer Commission opt-out registry

explained: what direct marketers need to know", 2026; The Media Online, "NCC clarifies new opt-out registry rules for direct marketers", August 2026; IOL, "Spam callers face R1 million penalty as South Africa launches new registry", 15 September 2026.

- National Consumer Tribunal decisions: *Julie Williams v Cell C Ltd*, NCT/300948/2023/75(1)(b) (March 2025); *J.J. Holl v Rifle Range Car Sales (Pty) Ltd and Another* (leave granted April 2025). High Court and Supreme Court of Appeal decisions: *Van Wyk t/a Skydive Mossel Bay v UPS SCS South Africa (Pty) Ltd* [2020] 1 All SA 857 (WCC); *Platinum Wheels (Pty) Ltd v National Consumer Commission and Another* (612/2023) [2024] ZASCA 163. Cited from secondary commentary (Cliffe Dekker Hofmeyr, Moonstone, SAFLII); verify citations and holdings against the full judgments before use in advice.
- GBS CPA Training Paper, CPA/POPIA compliance paper, "Consumer Protection Act: What Every Department Needs to Know" slide deck, and CPA/NCC Compliance Self-Assessment tool (project and session files).
- Consumer Goods and Services Ombud (CGSO), National Financial Ombud Scheme South Africa (NFO; operating since 1 March 2024, NFO media release and National Treasury statement, 29 Feb–1 Mar 2024), and the Motor Industry Ombudsman of South Africa (MIOSA) are cited from their own public materials and general knowledge; verify current jurisdiction and process before directing a client to any of them.
- National Consumer Commission, Draft Guidelines on the Opt-Out Registry, GG 55465, Notice 7981, 2 October 2026 (comment period extended to 6 November 2026; Moonstone, 15 October 2026); TimesLive, "NCC launches opt-out registry…", 7 October 2026 (phased timetable); Bowmans, "Launch of the national opt-out registry…", October 2026.
- Motus Corporation (Pty) Ltd v Wentzel [2021] ZASCA 40; Pure Silk Invest 2 (Pty) Ltd t/a Group 1 Nissan Kuils River v Martin [2025] ZAWCHC 568 (s.69(d) and direct access to court).
- Electronic Communications and Transactions Act 25 of 2002, s.44 (cooling-off for electronic transactions); CPA ss.14, 17, 20, 56, 60–61 and Regulation 5; Consumer Goods and Services Industry Code (CGSO complaint-record and designated-official requirements).

This flow is a working document for legal review, not legal advice.

Working document for legal review — not legal advice. CPA = in force; POPIA = in force; BP = best practice. Page 1 of 2